

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ROMANIA

Complete Community Opposition How-To

This guide uses the Romanian terms and bodies you'll actually run into — the environmental permit and the EIA, the APM and ANPM, the acordul de mediu, the administrative courts, Natura 2000 — and explains each in plain words the first time. Romania is an EU member bound by European environmental law, and that external leverage runs through everything.

INTRODUCTION & FRAMEWORK

For twenty years, a Canadian-British company planned to turn the small Transylvanian town of Roșia Montană into **Europe's largest open-pit cyanide gold mine** — levelling mountains, drowning a valley under a cyanide-laced tailings lake, and erasing a landscape of Roman-era mining galleries. And for twenty years the people of Roșia Montană fought it, joined over time by Romanian civil society and, in the end, the state itself. They fought through the **environmental-permit process**, through the **courts**, and — in **2013, in some of the largest street protests since 1989** — through the sheer, sustained weight of a mobilised public. They won. The mine was stopped. In **2021 the site became a UNESCO World Heritage Site**. And in **2024 an international tribunal rejected the company's multi-billion-dollar compensation claim in full, upholding Romania's environmental and heritage protections as lawful**. It is one of the greatest community environmental victories in modern Europe — proof that here, a community can win.

The people of Roșia Montană, joined over twenty years by Romanian civil society and in the end the state itself, drew on a toolkit that is, in one respect, unusually strong: **Europe. Romania is a member state of the European Union**, bound by EU environmental law its own government cannot lawfully override, watched by the **European Commission** (which has pursued Romania over environmental failings) and the **Court of Justice**, with an environmental-permitting system built on European models and courts that apply them. That combination — **EU law, a real permit process, and, when roused, a mass public** — is the ground this guide stands on; it stopped Europe's largest open-pit cyanide gold mine, made the site a UNESCO World Heritage Site in 2021, and saw an international tribunal reject the company's multi-billion-dollar compensation claim in 2024. But these tools have real limits, and this guide states them plainly. Romania's state and powerful interests push hard for mining, quarrying, dams, logging, and infrastructure; permitting can be rushed or captured; and in the forests especially — where illegal logging is vast and violent — resistance can be genuinely dangerous. Roșia Montană took two decades and a nationwide movement — a reminder that even here the strongest tools reward endurance.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A major Romanian project needs its **environmental permit** (the *acordul de mediu*), resting on an EIA; where it touches a **Natura 2000** site or protected water it runs into hard EU law; it can be challenged in the **administrative courts**; and — as at Roșia Montană — it can be stopped by a mobilised public. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — and in Romania, the EU-law link is often the strongest.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project hits a Natura 2000 site or protected water, or the EIA is flawed, EU law and the administrative courts genuinely bite** — the European Commission can pursue Romania, and a Romanian court must apply EU law.
- **If public feeling is strong, mass mobilisation is real here** — Ro■ia Montan■ was won partly in the streets.
- **In the forests, illegal logging makes resistance dangerous** — work through the traceability system and the authorities, and protect your people.

Read the whole guide once before you move. Two principles run through it. First, **use the European lever**: your strongest moves are the ones that engage EU obligations a Romanian authority cannot set aside. Second, **combine the strands**: documentation, EU and domestic legal action, organising, media, and — where it fits — mass mobilisation. That combination is how Ro■ia Montan■ was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Environmental permitting runs through the county **Environmental Protection Agencies (APM)** and the **National Agency (ANPM)**, which conduct the EIA and issue — or refuse — the **environmental agreement (acordul de mediu)** and **permit (autoriza■ia de mediu)** a project needs. This permit is the document the whole project rests on. Sector regulators grant mining and other rights; local authorities hold land-use powers; and for forests, the **Forest Guard (Garda Forestier■)** and the timber-traceability system apply. Above them all sits **EU law**, enforced by the courts and the European Commission. Know which decision you can contest — and remember the EU-law argument runs through all of them.

How a Project Moves — and Where You Jump In

The EIA and public consultation. The developer's EIA goes to the APM/ANPM with **public consultation**. *Your opening* — and it arms every later step: file substantive objections now, especially on EU-law grounds (Natura 2000, water, species).

The permit (acordul de mediu). The agency issues the environmental agreement. *Your opening*: challenge it in the administrative court.

Construction and operation. *Your opening*: breaches, complaints to the European Commission, and — for forests — the traceability system and the Forest Guard.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a foreign parent is sensitive to investors and reputation. **What it still needs** — the permit not final or under challenge, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks, and often **EU funds**, which carry environmental conditions.

Who's Supposed to Be Watching

Each is an ally or an arena. The **APM and ANPM** run the permit and can be pressed. The **administrative courts** review its legality. The **European Commission** enforces EU environmental law against Romania, and the **Court of Justice** can rule the state in breach. The **anti-corruption directorate (DNA)** pursues graft, which has dogged Romanian permitting. The **Ombudsman (Avocatul Poporului)** takes complaints, and the **Forest Guard** oversees timber. And Romania's **strong environmental movement, its civic networks, and its press** are the forces that reach furthest — the combination that won Ro■ia Montan■.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether EU-protected nature is engaged, whether the EIA is flawed, and how much public feeling the project has stirred.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections in the consultation	15–35%	during EIA	low	On record; conditions or a redo
Administrative court challenge	30–55%	1–3 yr	low–mod	Permit annulled
EU-law grounds (Natura 2000, water, EIA)	35–60%	1–5 yr	low–mod	Permit struck; project blocked
Complaint to the European Commission → CJEU	30–55%	1–5 yr	low	Romania found in breach
Anti-corruption / heritage protection	20–50%	varies	low	Tainted permit undone; heritage shield
Mass mobilisation	30–55%	months–yr	low	State retreat (Ro■ia Montan■)
Everything together (EU trigger, public roused)	45–65%	1–5 yr	low–mod	Struck down, blocked, delayed, protected
Everything together (state-backed, clean process)	20–45%	1–5 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **administrative courts armed with EU law**, a **complaint to the European Commission**, and **mass mobilisation**, backed by the press and, where relevant, heritage protection. Ro■ia Montan■ shows the ceiling — a mega-mine stopped, the site made a World Heritage Site, the company's claim rejected. Most fights are smaller, and a struck permit, delay, heritage listing, and exposure all count as wins.

On cost: objecting and organising are cheap, and a complaint to the European Commission is free and open to anyone; environmental NGOs and residents have standing before the administrative courts. The EU-law route is what levels the field.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this permit, this flaw, this EU-protected line — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its foreign parent, its financiers (especially EU funds).

2. Where is it, and what does it touch? Get the boundaries and lay them over a **Natura 2000** site, protected water, forest, heritage, communities. **A Natura 2000 site, protected water, or heritage value is your sharpest lever**, so this map is your most important document — Ro■ia Montan■ turned on heritage and a cyanide threat to water.

3. What stage is it at, and what's the next deadline? Is the consultation open? Has the permit issued (opening the administrative court)? These openings are time-bound.

4. What does it still need that it lacks? A permit not final, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbours, national environmental NGOs, heritage groups, the wider public. Ro■ia Montan■ united a town with a nation.

What this looks like in real life. A community learns a mine or quarry is planned that threatens a Natura 2000 site and its water, with a weak EIA. The five questions yield: a foreign parent (and EU funds) behind it; a site on EU-protected nature or heritage (the sharp lever); a consultation open with a permit pending; a project still needing it; and a coalition of neighbours and national NGOs. That's the Ro■ia Montan■ pattern — object on EU-law grounds, ready the courts and Brussels, and rouse the public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the environmental agreement and its conditions, the Natura 2000 assessment, the water and heritage studies. Romania's environmental-information rights (from Aarhus and EU law) let you demand what isn't public. Then read the EIA hard for flaws — an understated impact, an ignored alternative, a Natura 2000 site brushed over, a water or heritage value minimised.

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the forest, the heritage — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of EU protections and heritage. Lay the project over every Natura 2000 site, protected water body, and heritage asset it touches, so each lever is visible. Walking into the administrative court — or the European Commission — with the EIA, the permit, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the environmental agreement and conditions, the Natura 2000 and water studies, the heritage assessment** — from the APM/ANPM; force out the rest under the environmental-information rules (8A).
- **Land and heritage records** — from the local authorities and the heritage bodies.
- **Ownership and financing** — company records, the foreign parent's filings, and EU-fund documents.

- **The EU-protections-and-heritage map** — Natura 2000 sites, protected water, and heritage assets, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Ro■ia Montan■'s town-to-nation coalition is the great Romanian example. Build yours in four moves.

Start with a tight core. The neighbours most affected, the people who know the land and heritage, a few tireless organisers, and respected local figures.

Form a group and reach the national networks. A named association, linked early to Romania's strong environmental and heritage NGOs, which bring standing, expertise, and the reach that turned Ro■ia Montan■ into a national cause. Hold meetings where people see the evidence — the map of the project over their water and heritage.

Build for mobilisation. Mass mobilisation is a real Romanian lever; build the coalition and the story so that, if the moment comes, you can bring the public with you as Ro■ia Montan■ did.

Bring in the experts and lawyers — early. Public-interest lawyers who run administrative-court and EU-law cases, and scientists who can dismantle a weak EIA. In the forests, work with the Forest Guard and the traceability system, and take safety seriously.

Build to last. Romanian fights can run for years — Ro■ia Montan■ took twenty. Build clear roles, a secure shared archive, a way to decide together, and a plan for the toll — and, in dangerous forest contexts, for physical safety.

STEP 4: LEGAL CHALLENGES & EU LAW

Law is one of Romania's sharpest levers, because the courts apply EU law the state cannot override.

Object First — It Builds the Record

Everything downstream is stronger if you filed substantive objections in the consultation, especially on EU-law grounds. The court reviews the permit on that record.

The Administrative Courts — and the Power of EU Law

Challenge the environmental agreement in the **administrative courts (contencios administrativ)**. The strongest grounds are **European**: the **Habitats and Birds Directives** (Natura 2000 and species), the **Water Framework Directive** (a project worsening a water body), and the **EIA Directive** (a defective assessment). These are hard, enforceable rules a Romanian court must apply. Ask for suspension of the permit while the case runs.

The European Commission — Brussels as a Second Front

Run a parallel front: **complain to the European Commission** that the project breaches EU environmental law. It's free, anyone can do it, and the Commission — which has pursued Romania over environmental failings before — can open infringement proceedings and take Romania to the **Court of Justice**. Because Romanian projects often use **EU funds**, this angle bites.

Heritage, Corruption, and the Forests

Two more Romanian levers. Where a site has **heritage value**, protection (up to UNESCO listing, as at Roșia Montană) can shield it. And where a permit is tainted by **corruption**, the **anti-corruption directorate (DNA)** and the courts can undo it. In the **forests**, the timber-traceability system and the Forest Guard are the lawful tools against illegal logging — used carefully, given the danger.

The Honest Limits

Straight talk: the courts and EU law are powerful, but litigation is slow, permitting can be captured, and forest resistance is dangerous. So use the strong tools — the objections, the administrative courts, EU law, the European Commission, heritage protection — but pair them with mobilisation and the press, protect your people, and count a struck permit, a heritage listing, delay, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the mine is bad" but *"the EIA ignored the impact on this Natura 2000 site — so the permit breaches EU law."*

A water body becomes a barrier. *"This would worsen the status of a protected water body, which the Water Framework Directive forbids."*

Heritage becomes a shield. *"This landscape is of outstanding heritage value — as Roșia Montană's was, now a World Heritage Site."*

The harm becomes a public story. *"The valley, the water, the heritage our families have always known — for a mine we never agreed to."*

Match it to the venue: the objections to the APM; the EU-law grounds to the administrative court; the breach to the European Commission; the heritage to the protection bodies; the human story to the streets and the press.

STEP 5: MEDIA STRATEGY

In Romania, publicity and mobilisation are inseparable — Roșia Montană became a national cause carried by huge protests. A free press and civic networks make the media front central.

Lead with people and place, not procedure. Not "the EIA was deficient" but "the valley, the water, the heritage our families have always known — for a mine we never agreed to." Use your strongest material: dated photographs, the map of the project over the Natura 2000 site or heritage, and named residents.

Work several audiences at once — including Europe. Local and national press and social media build the mass; national NGOs amplify; and European media and institutions reach the Commission and the foreign parent's investors. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — in forest contexts especially, resistance can be dangerous.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Environmental-information request (to the APM/ANPM).

Subject: Request for environmental information — [project].

"Under the environmental-information rules, we, residents of [place], request the EIA, the environmental agreement and its conditions, and the Natura 2000 and water studies for [project] at [location]. [Contact.]"

8B — Objection in the consultation.

Subject: Objection — public consultation on [project].

"We, residents of [place], object to [project]: [it damages this Natura 2000 site / protected water; the EIA ignored alternatives and heritage]. We ask that the environmental agreement be refused. [Attach evidence.]"

8C — To a national NGO / lawyer (court challenge).

Subject: Request for support and an administrative-court challenge — [project].

"Our community faces [project] on [a Natura 2000 site / protected water / heritage]. We've gathered [the EIA, the permit, photographs, studies] and believe it breaches [the Habitats / Water Framework / EIA Directive]. We ask for your support and, if warranted, a challenge, as partners. [Contact and evidence summary.]"

8D — Instructing a lawyer (annulment + suspension).

Subject: Challenge to the environmental agreement — [project].

"We instruct you to challenge the environmental agreement for [project], issued on [date], in the administrative court, and to seek suspension, on the grounds that [it breaches the Habitats / Water Framework / EIA Directive / the EIA was defective]. [Attach the agreement, the EIA and our evidence.]"

8E — Complaint to the European Commission.

Subject: Possible breach of EU environmental law — [project], Romania.

"We report a possible breach of EU environmental law (the Habitats/Birds/Water Framework/EIA Directives) by [project] at [location], which damages the [named] Natura 2000 site / worsens a protected water body without proper assessment. [Attach evidence.]"

8F — Letter to the press.

Subject: [Community] moves to protect [valley / water / heritage] from [project].

"For generations the people of [place] have lived beside [the valley / the water / the heritage] at [location] — protected across Europe. Now [project] threatens to destroy it. We can provide photographs, documents, a map and interviews. [Contact.]"

8G — To an EU-fund body / heritage authority.

Subject: EU-law, funding, and heritage risk in [project].

"We understand [project] at [location] may be [EU-funded] and that it damages a Natura 2000 site / protected water / heritage asset in possible breach of EU law. We ask you to weigh this against the conditions on EU funds and heritage protection. [Contact and evidence summary.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our valley / water / heritage]. At Roșia Montană, a town and a nation stopped Europe's largest cyanide gold mine — with EU law, the courts, and the streets. With the consultation, the courts, the European Commission, and mass mobilisation behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for an EU trigger or heritage value.** A Natura 2000 site, protected water, or heritage is your sharpest lever.
2. **File substantive objections in the consultation (8B), on EU-law grounds.** They become the court's record.
3. **Request the EIA and permit (8A), and read them for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Challenge the permit in the administrative court (8D) — and complain to the European Commission (8E).**
6. **Team up with a national NGO and, if the moment comes, mobilise (8C/8H).** Roșia Montană was won this way.

Even lean, those six use your rights, build the record, and open the EU-law front.

WHEN THE SYSTEM IS TILTED

Romania's tools are real, but the field can be tilted, and you must plan for it.

When the state or powerful interests back the project. Use the EU-law grounds, the courts, and the Commission, keep the movement alive, and make the backing of a flawed project a public and European cost.

When permitting is captured. Where a permit is tainted, the anti-corruption directorate and the courts can undo it — document the impropriety and route it properly.

When it's in the forests. Illegal logging makes forest resistance dangerous. Work through the traceability system and the Forest Guard, keep it lawful and evidenced, and protect your people.

What still works, and it's a lot. The administrative courts apply EU law; the European Commission can force a stop; heritage protection can shield a site; and a roused public has stopped a mega-mine.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Romania has serious, documented problems with the capture of permits and logging, so this matters.

How to spot it. Permits against the evidence; an EIA written for the proponent; a consultation engineered to exclude; contracts, EU funds, or logging rights steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **anti-corruption directorate (DNA)** pursues graft. The **Court of Accounts** examines public money. The **Ombudsman** takes complaints. The **administrative courts** can annul a tainted permit, and the **European Commission** can act where EU funds are misused. And Romania's **investigative press and NGOs** have exposed captured projects and illegal logging.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the DNA, the Court of Accounts, and trusted journalists rather than making accusations you can't back — and, in the forests, protect insiders and witnesses. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the EU trigger and heritage aims it; organising builds the muscle; the courts and the Commission press the case; the media and mobilisation raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any Natura 2000, water, or heritage; object in the consultation on EU-law grounds; request the records; photograph the baseline; team up with a national NGO and a lawyer; build your group.

In the thick of it (months–years): challenge the permit in the administrative court and seek suspension; complain to the European Commission; pursue heritage protection and, where relevant, the anti-corruption route; build the mobilisation and open the media front.

The long haul (years): carry the case through the courts and, via the Commission, the CJEU; keep the movement alive; hold the line for a struck permit, a heritage listing, delay, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Romania can be done — a Transylvanian town and a whole nation stopped Europe's largest cyanide gold mine, won World Heritage protection for the site, and saw the company's multi-billion claim rejected. Hold both truths. Romania's tools are real and, in one respect, unusually strong: membership of the EU, whose environmental law the state cannot override; administrative courts that apply it; a European Commission and Court of Justice that can force a stop; heritage protection; and a public that, roused, has stopped a mega-project. And the constraints are real: state and powerful backing, capturable permitting, slow litigation, and genuine danger in the forests.

Here's the discipline that wins. Find the EU trigger — the Natura 2000 site, the protected water — or the heritage value, and the flaw in the EIA, and pry loose the record. Object on EU-law grounds in the consultation. Challenge the permit in the administrative court and seek suspension, and open a second front by complaining to the European Commission. Pursue heritage protection and, where a permit is tainted, the

anti-corruption route. Team up with a national NGO, and — if the moment comes — mobilise, as Ro■ia Montan■ did. Count a struck permit, a heritage listing, delay, and exposure as wins alongside a clean stop. That's what Ro■ia Montan■ did — the town, the courts, EU law, and the streets together. So can you.